

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Haeley Galeote	Team: Squad #16	CCRB Case #: 202309123	☒ Force ☒ Abuse	☒ Discourt. ☐ O.L.	☐ U.S. ☐ Injury
Incident Date(s) Friday, 09/15/2023 7:20 AM, Friday, 09/15/2023 8:00 AM	Location of Incident: § 87(2)(b) Hospital		18 Mo. SOL 3/15/2025	Precinct: 32	
Date/Time CV Reported Fri, 09/15/2023 10:58 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 09/27/2023 12:00 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Fengguang Lin	17283	966668	032 PCT
2. PO Muhitul Ambia	00786	946744	032 PCT
3. PO Michael Buliga	18135	963888	032 PCT
4. PO Aleksey Berezovskiy	11700	956433	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Muhitul Ambia	Discourtesy: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Muhitul Ambia spoke discourteously to § 87(2)(b)	§ 87(2)(b)
B . PO Aleksey Berezovskiy	Abuse: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Aleksey Berezovskiy forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
C . PO Michael Buliga	Abuse: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Michael Buliga forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
D . PO Muhitul Ambia	Abuse: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Muhitul Ambia forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
E . PO Fengguang Lin	Abuse: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Fengguang Lin forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
F . PO Aleksey Berezovskiy	Force: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Aleksey Berezovskiy used physical force against § 87(2)(b)	§ 87(2)(b)
G . PO Michael Buliga	Force: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Michael Buliga used physical force against § 87(2)(b)	§ 87(2)(b)
H . PO Muhitul Ambia	Force: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Muhitul Ambia used physical force against § 87(2)(b)	§ 87(2)(b)
I . PO Fengguang Lin	Force: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Fengguang Lin used physical force against § 87(2)(b)	§ 87(2)(b)
J . PO Aleksey Berezovskiy	Force: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Aleksey Berezovskiy used physical force against § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
K . PO Aleksey Berezovskiy	Force: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Aleksey Berezovskiy restricted § 87(2)(b) breathing.	
L . PO Aleksey Berezovskiy	Discourtesy: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Aleksey Berezovskiy spoke discourteously to § 87(2)(b)	

Case Summary

On September 15, 2023, § 87(2)(b) filed this complaint with IAB. The CCRB received the complaint, with original log number § 87(2)(b) on September 27, 2023.

On September 15, 2023, at approximately 7:20 a.m., Police Officers Muhitul Ambia, Fengguang Lin, Aleksey Berezovskiy, and Michael Buliga, all of the 32nd Precinct, responded to a 911 call at § 87(2)(b) in Manhattan. PO Muhitul stated, “Fuck her,” to § 87(2)(b) mother (**Allegation A: Discourtesy**, § 87(2)(g) PO Ambia, PO Berezovskiy, PO Buliga, and PO Lin, removed § 87(2)(b) to the hospital for a psychiatric evaluation (**Allegations B-D: Abuse of Authority**, § 87(2)(g) **Allegation E: Abuse of Authority**, § 87(2)(g) PO Berezovskiy, PO Buliga, PO Ambia, and PO Lin, pulled at § 87(2)(b) hood, arms, and took him down to the ground (**Allegations F-H: Force**, § 87(2)(g) **Allegation I: Force**, § 87(2)(g) PO Berezovskiy struck § 87(2)(b) with his leg (**Allegation J: Force**, § 87(2)(g) PO Berezovskiy restricted § 87(2)(b) breathing (**Allegation K: Force**, § 87(2)(g)

On the same day at approximately 8:00 a.m., at § 87(2)(b) Hospital, located at § 87(2)(b) in Manhattan, PO Berezovskiy told § 87(2)(b) “The tears look good on you. Keep crying” (**Allegation L: Discourtesy**, § 87(2)(g)

No arrests or summons resulted from the incident.

The investigation is in possession of four body-worn cameras (BWC) (BR 23). The investigation is not in possession of additional video footage.

Findings and Recommendations

Allegation (A) Discourtesy: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Muhitul Ambia spoke discourteously to § 87(2)(b)

This allegation derives from BWC footage.

In PO Ambia’s BWC (BR 14) at 04:37, § 87(2)(b) asks officers if they can close her front door. At 04:46, PO Ambia states that § 87(2)(b) is smoking, to which § 87(2)(b) states she can smoke because it is her house. At 05:00, § 87(2)(b) tells PO Ambia if he is mad, he can go outside, to which he states, “So you don’t need us.” At 05:10, § 87(2)(b) states that other officers have closed her door before, and no one needs to know her business. At 05:15, PO Ambia states they could hear her from downstairs, which § 87(2)(b) tells him that he is overreacting. At 05:29, PO Ambia states, “I’m overreacting? Fuck her.” § 87(2)(b) proceeds to tell PO Berezovskiy that PO Ambia can close the door.

§ 87(2)(b) stated (BR 01) that § 87(2)(b) called for police and an ambulance after having a verbal argument with him. § 87(2)(b) did not mention PO Ambia using profanity during this incident.

§ 87(2)(b) was uncooperative in providing a statement to the investigation.

PO Ambia stated (BR 18) that on September 15, 2023, at approximately 7:20 a.m., when he arrived at the apartment, § 87(2)(b) was smoking, arguing with § 87(2)(b) cursing, and threatening to hit him. § 87(2)(b) sat on a stool as § 87(2)(b) yelled at him and told officers that she wanted him removed to the hospital. At some point, PO Ambia told § 87(2)(b) to stop smoking, which she got mad at and stated that it was her house, and he was overreacting. Upon reviewing his BWC, PO Ambia acknowledged he said, “I’m overreacting? Fuck her,” but did not know why he made that statement. Other than § 87(2)(b) being upset with her son and officers waiting for EMS, there was nothing else going on during the moment that PO Ambia used profanity.

Patrol Guide Procedure 200-02, The Mission, Vision, and Values of the NYPD (BR 11), states members of service must respect the dignity of each individual and render services with courtesy and civility. Additionally, officers must “maintain a higher standard of integrity than is generally expected of others because so much is expected of us.” However, officers may use

profanities in the context of a dynamic situation over which they are attempting to gain control but may not do so when it “[serves] no legitimate purpose but to belittle” a civilian, DCT Case Number 2015-15012 (BR 12).

BWC confirms that when PO Ambia stated, “I’m overreacting? Fuck her,” there was no dynamic situation in which he needed to gain control as they were waiting for EMS. § 87(2)(g)

Allegation (B) Abuse of Authority: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Aleksey Berezovskiy forcibly removed § 87(2)(b) to the hospital.

Allegation (C) Abuse of Authority: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Michael Buliga forcibly removed § 87(2)(b) to the hospital.

Allegation (D) Abuse of Authority: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Muhitul Ambia forcibly removed § 87(2)(b) to the hospital.

Allegation (E) Abuse of Authority: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Fengguang Lin forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) stated (BR 01) that on September 15, 2023, at approximately 7:20 a.m., § 87(2)(b) got into a verbal argument with § 87(2)(b). § 87(2)(b) grew angry and started punching a wall. § 87(2)(b) called 911 and requested police and an ambulance to the scene. PO Berezovskiy, PO Ambia, PO Buliga, PO Lin, all identified by the investigation, and EMTs responded and were let into the apartment by § 87(2)(b). The EMTs told § 87(2)(b) that he had to go to the hospital to be evaluated, to which § 87(2)(b) stated he did not want to. The EMTs told him he had no choice and that he had to go to the hospital.

§ 87(2)(b) was uncooperative in providing a statement to the investigation.

In PO Berezovskiy’s BWC (BR 13) at 15:55, § 87(2)(b) tells an EMT that § 87(2)(b) does not take his medication. At 16:13, an EMT tells § 87(2)(b) that he has to go to the hospital to get evaluated, to which he states no. At 16:24, the EMT tells § 87(2)(b) that he is not taking his medication, they have to take him to the hospital.

The EVENT information (BR 10) showed that § 87(2)(b) called 911 stating that § 87(2)(b) has ADHD and is bipolar and was violent, hitting himself, punching walls, and under the influence of marijuana. EMS was requested upon the start of the job. The job came in as an “Ambulance Case: EDP/Inside/Violent EDP.”

Patrol Guide Procedure 221-13 (BR 24) defines an emotionally disturbed person (EDP) as a person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others. When responding to jobs for an EDP, officers must request and/or ensure the response of an ambulance.

Patrol Guide Procedure 216-01 (BR 06) states that uniformed members of the service concerned shall cooperate with ambulance/hospital personnel in every reasonable manner.

BWC and the EVENTS confirmed that § 87(2)(b) called 911 for assistance with removing § 87(2)(b) to the hospital due to him hurting himself, being under the influence, and being diagnosed with ADHD and bipolar disorder. It is undisputed that EMTs decided § 87(2)(b) needed to be removed to the hospital based on the call and the information obtained on scene. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (F) Force: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Aleksey Berezovskiy used physical force against § 87(2)(b)
Allegation (G) Force: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Michael Buliga used physical force against § 87(2)(b)
Allegation (H) Force: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Muhitul Ambia used physical force against § 87(2)(b)
Allegation (I) Force: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Fengguang Lin used physical force against § 87(2)(b)
Allegation (J) Force: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Aleksey Berezovskiy used physical force against § 87(2)(b)
Allegation (K) Force: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Aleksey Berezovskiy restricted § 87(2)(b) breathing.

§ 87(2)(b) stated (BR 01) that as he was escorted to the ambulance, PO Berezovskiy grabbed the back of his hoodie and told him he had to hold him. § 87(2)(b) asked him to stop and said he was walking out “perfectly fine.” § 87(2)(b) and PO Berezovskiy then began wrestling. PO Berezovskiy held § 87(2)(b) arms and § 87(2)(b) pushed PO Berezovskiy against a wall in the lobby. PO Ambia, PO Buliga, and PO Lin then “got on top” of § 87(2)(b) and took him to the ground. As officers took him down to the ground, § 87(2)(b) was bent forward at the waist, and PO Berezovskiy moved his right knee upwards towards § 87(2)(b) face but missed. PO Berezovskiy then moved his knee upwards a second time and struck § 87(2)(b) in the face. § 87(2)(b) nose grew swollen and began bleeding. Once § 87(2)(b) was on the ground, the officers handcuffed him and removed him to the ambulance. § 87(2)(b) did not mention his breathing being restricted at any point.

PO Berezovskiy stated (BR 19) that after being informed that he had to go to the hospital, § 87(2)(b) went downstairs willingly. However, as they got to the lobby, PO Berezovskiy stood behind § 87(2)(b) and saw that he was slowing down and starting to tense his body. PO Berezovskiy was unsure but believed he also heard § 87(2)(b) state that he was not going to the hospital. Due to § 87(2)(b) behavior, PO Berezovskiy believed he may try to run; thus, he told § 87(2)(b) that he would be handcuffing him. PO Berezovskiy grabbed § 87(2)(b) hoodie and his right forearm to guide him to the wall and handcuff him. However, § 87(2)(b) tensed his body, refused to put his arms behind his back, and yelled for his mom. § 87(2)(b) then squared his body and braced in place with his upper body facing down, arms to the side, and legs spread open, making it difficult for officers to get his arms behind his back. As § 87(2)(b) held his stance, PO Berezovskiy continued to hold onto § 87(2)(b) hood while other officers grabbed at his arm, and one attempted to sweep his legs from underneath him to bring him down. However, § 87(2)(b) did not go down; thus, PO Berezovskiy brought his right leg up, pressed his thigh against § 87(2)(b) face, and pivoted his body, while an officer pulled § 87(2)(b) legs out from underneath him to bring § 87(2)(b) the ground. PO Berezovskiy denied kneeling § 87(2)(b) face. PO Berezovskiy believed that the injuries sustained by § 87(2)(b) were a result of § 87(2)(b) continuously squirming on the

ground. PO Berezovskiy held § 87(2)(b) on the ground by pressing one hand on his upper back between his shoulders and one on the side of his face as other officers tried to place handcuffs. Despite hearing § 87(2)(b) state that he could not breathe, PO Berezovskiy maintained that he did not take any action that would have limited his breathing. After approximately a minute, officers handcuffed § 87(2)(b) and walked him to the ambulance.

PO Ambia stated (BR 18) that he exited the apartment building before § 87(2)(b). However, when PO Ambia stepped outside of the building, he heard a commotion, which he described as hearing the sound of bodies moving around. PO Ambia ran back into the building lobby to assist officers in handcuffing § 87(2)(b) but did not remember where he grabbed § 87(2)(b) initially. As officers held onto § 87(2)(b), § 87(2)(b) was tensing his arms and hands, preventing officers from placing them behind his back. PO Ambia did not witness an officer knee § 87(2)(b) nor witness an officer using any part of their knee or thigh to restrain § 87(2)(b). PO Ambia did not know how § 87(2)(b) sustained a bloody lip and swollen nose during the incident and could not say if § 87(2)(b) face made contact with the floor when officers took him down. Upon BWC review, PO Ambia stated that he pulled § 87(2)(b) leg out from underneath him to take him to the ground because § 87(2)(b) was not letting officers handcuff him. While on the ground, PO Ambia assisted officers in pulling § 87(2)(b) arms behind his back to handcuff him. Despite hearing § 87(2)(b) state he could not breathe, PO Ambia denied witnessing any officer restricting § 87(2)(b) breathing.

The investigation was able to make a determination without a statement from PO Buliga. § 87(2)(g)

In PO Berezovskiy's BWC (BR 13) at 21:50, § 87(2)(b) is following officers. At 21:57, PO Berezovskiy holds one of the lobby doors open as § 87(2)(b) goes through and tells PO Berezovskiy that he does not have to touch him. At 21:58, PO Berezovskiy states that he has to walk or he will handcuff him, to which § 87(2)(b) says, "Don't touch me." At 22:04, § 87(2)(b) pauses by the entrance of the building, with his right hand on the door frame, not stepping out. PO Berezovskiy grabs § 87(2)(b) left forearm and states, "Now we're going to cuff you." At 22:15, PO Berezovskiy, PO Buliga, PO Lin, and PO Ambia are around § 87(2)(b). PO Berezovskiy holds § 87(2)(b) hood, unable to see where the other officers hold him. At 22:19, PO Berezovskiy's BWC falls off and at 22:22, § 87(2)(b) yells out, "Stop kneeling me." At 22:30, § 87(2)(b) yells out to his mom that they are kneeling him. At 22:42, PO Berezovskiy has his hand on the left side of § 87(2)(b) face, holding it down. § 87(2)(b) has a bloody lip, BWC does not capture any nose injury. At 23:29, § 87(2)(b) states, "Fuck you bitch, you kneed me, you white bitch," as he faces PO Berezovskiy's direction.

In PO Buliga's BWC (BR 15) at 21:52, PO Lin holds onto § 87(2)(b) right wrist as PO Berezovskiy stands to his right side. PO Berezovskiy's guides § 87(2)(b) against a wall, but at 21:56, § 87(2)(b) extends his hands to the wall, and pushes away and turns to his right. At 21:57, PO Lin, PO Buliga, and PO Ambia hold onto § 87(2)(b) arms as § 87(2)(b) upper body is bent forward towards the door. A struggle ensues as PO Buliga, PO Lin, and PO Ambia grapple with § 87(2)(b). At 22:09, § 87(2)(b) states, "Stop kneeling me." At 22:17, § 87(2)(b) states that officers are kneeling him. It is unclear whether an officer's knee is against § 87(2)(b) as he complains officers are kneeling him. At 22:24, PO Ambia pulls § 87(2)(b) left leg causing § 87(2)(b) to slide down onto his back. At 22:27, PO Lin is holding § 87(2)(b) left wrist, which is handcuffed, and

at 22:34 PO Lin pulls the arm behind § 87(2)(b) body. PO Lin and PO Ambia's knee are against § 87(2)(b) legs at this point. § 87(2)(b) right side of his body is against ground. At 22:38, PO Buliga holds onto § 87(2)(b) left forearm as PO Lin is heard closing the handcuff around § 87(2)(b) left wrist. At 22:42, § 87(2)(b) right arm is in front of him and under his body with his hand in a fist. At 22:44, PO Berezovskiy's right knee appears to be against § 87(2)(b) head as he is faced down. At this point, § 87(2)(b) says, "Fucking bitch. Fucking kneed me, bitch." § 87(2)(b) does not complain of difficulty breathing at this point. At 22:47, PO Lin grabs onto the right side of § 87(2)(b) hoodie and pulls § 87(2)(b) right arm towards his back. At 22:52, PO Berezovskiy appears to push down on § 87(2)(b) upper back area while his other hand is above his left shoulder (it is unclear where this hand is making contact). PO Berezovskiy's right knee moves away from being on top of his head to next to his head on the ground. As PO Lin and PO Buliga attempt to hold of § 87(2)(b) right arm, PO Ambia assists PO Lin in placing handcuffs on the right wrist. § 87(2)(b) is heard breathing heavily as PO Berezovskiy has his hand on his upper back and at 23:08, § 87(2)(b) states that he cannot breathe. At 23:10, PO Berezovskiy shifts his arm and is seen grasping the back of the hoodie but no longer applying pressure to § 87(2)(b) back.

In PO Lin's BWC (BR 16) at 21:21, § 87(2)(b) upper body is bent forward while officers are holding onto various parts of his body. Given the position of his right leg against the wall and his other leg spread apart, it appears that § 87(2)(b) is tensing his body. At 21:28, § 87(2)(b) yells that they are kneeling him and PO Berezovskiy is seen still holding onto his hood. It is unclear whether officers' knees are making contact with him. At 21:35, § 87(2)(b) falls to the ground and PO Lin holds onto his left wrist, but his arm is tensed up at his side. Starting at 21:46, shows another angle of PO Berezovskiy's knee against § 87(2)(b) head. At 22:38, PO Lin grabs § 87(2)(b) left bicep and lifts him up.

In PO Ambia's BWC (BR 14) at 22:22, BWC is unable to clearly capture § 87(2)(b) face as he states he is being kneed. At 22:23, PO Ambia reaches for § 87(2)(b) left calf and pulls his leg from underneath him. As § 87(2)(b) slides down to the floor, PO Berezovskiy has his hand on the left side of § 87(2)(b) face holding it down the entire time. At 22:33, as his face is held down, § 87(2)(b) lip is seen bloody, § 87(2)(b) nose is not captured (BR 21).

The TRI prepared for § 87(2)(b) (BR 17) states that officers observed indications of potential attempts to flee, thus, officers decided to handcuff § 87(2)(b). Upon resisting, the officers employed a controlled takedown to gain control. § 87(2)(b) alleged PO Berezovskiy performed a knee strike to the face. PO Berezovskiy stated that he struck § 87(2)(b) with his thigh during the takedown to overcome § 87(2)(b) aggression, but the injuries sustained resulted from the controlled takedown not from contact with PO Berezovskiy's thigh. § 87(2)(b) complained of pain to his face and inner lips and laceration on the top of his nose.

Patrol Guide Procedure 216-01 (BR 06) states that uniformed members of the service concerned shall cooperate with ambulance/hospital personnel in every reasonable manner.

Patrol Guide Procedure 221-01 (BR 07) states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. To determine whether the use of force is reasonable, the following should be considered: actions taken by subject, duration of the action, whether the subject is actively resisting custody, and number of subjects in comparison to the number of MOS.

Patrol Guide Procedure 221-02 (BR 08) states that officers may not apply no more than the reasonable force necessary to gain control. Additionally, officers are strictly prohibited from sitting,

kneeling, or standing on the chest or back of a subject in a manner that compresses the diaphragm, reducing their ability to breathe.

BWC confirms that § 87(2)(b) refused to walk out the building by remaining in place and then resisting by pushing off a wall, tensing his arms, and bracing his body in place. § 87(2)(g)

§ 87(2)(g)

Although § 87(2)(b) stated that PO Berezovskiy struck him with his knee and PO Berezovskiy stated that he raised his leg up and pressed his knee against § 87(2)(b) given the TRI report and BWC capturing § 87(2)(b) complaining that an officer kneed him. § 87(2)(g)

While BWC confirms that § 87(2)(b) stopped following EMS, and resisted officers by bracing his body in place with his arms tensed at his side as they attempted to place him in handcuffs to continue assisting in his removal to the hospital. § 87(2)(g)

Moreover, none of the officers stated that § 87(2)(b) was fighting or attempting to strike an officer at this point and BWC does not capture him doing so. § 87(2)(g)

Although PO Buliga and PO Lin's BWC shows that PO Berezovskiy's knee appears to be against § 87(2)(b) head at a certain point, he was talking and his breathing did not seem labored. Furthermore, he did not complain that his breathing was restricted at this point and PO Berezovskiy denied taking any action that would have restricted § 87(2)(b) breathing. § 87(2)(g)

However, BWC confirmed that PO Berezovskiy placed one hand on § 87(2)(b) upper back between his shoulders and applied pressure, given how PO Berezovskiy is positioned over him, for approximately 17 seconds while § 87(2)(b) chest was on the ground, during which it sounded as if § 87(2)(b) breathing was labored. PO Berezovskiy removed his hand after § 87(2)(b) stated he could not breathe. However, despite removing pressure from § 87(2)(b) upper back upon § 87(2)(b) stating he could not breathe, the Patrol Guide states that officers may not sit, kneel, or stand on the back of a subject in a manner that will reduce their ability to breathe. § 87(2)(g)

§ 87(2)(g)

Allegation (L) Discourtesy: On September 15, 2023, at § 87(2)(b) in Manhattan, Police Officer Aleksey Berezovskiy spoke discourteously to § 87(2)(b)

§ 87(2)(b) said that, at the hospital, PO Berezovskiy told him, “The tears look good on you. Keep crying,” as § 87(2)(b) was crying. § 87(2)(b) did not know what PO Berezovskiy meant by the statement but that he was offended by the comment.

PO Berezovskiy stated (BR 19) that once at the hospital he did not have any conversation with § 87(2)(b). PO Berezovskiy denied stating, “The tears look good on you. Keep crying.”

PO Ambia stated (BR 18) that officers did not converse with § 87(2)(b) while at the hospital, and denied that any officer told § 87(2)(b) “The tears look good on you. Keep crying.”

None of the officers have BWC activated while at the hospital (BR 13-16).

Patrol Guide Procedure 212-123 (BR 20) states that BWC should not be activated inside of a medical facility unless it is necessary to take police action.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)
- PO Berezovskiy has been a member of service for 10 years and has been a subject in two complaints and seven allegations, none of which were substantiated. § 87(2)(g)
- PO Ambia has been a member of service for 16 years and has been a subject in two complaints and four allegations, none of which were substantiated. § 87(2)(g)
- PO Buliga has been a member of service for seven years and has been a subject in one complaint and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.

- [illegible]

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____